

**VILLAGE OF GRAYSLAKE
ORDINANCE NO. 2025-0-06**

**AN ORDINANCE GRANTING A SPECIAL USE PERMIT FOR AN ENLARGED
PLANNED UNIT DEVELOPMENT AND AMENDING THE TERMS OF THE “AGREEMENT OF
CONDITIONS & SPECIFICATIONS FOR THE SPECIAL USE PERMIT GRANTED FOR THE
PLANNED UNIT DEVELOPMENT T5@CHICAGO IV PHASE 2”**

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PLANNED UNIT DEVELOPMENT T5@CHICAGO IV PHASE 2”

WHEREAS, the Village of Grayslake (the “**Village**”) has previously adopted Ordinance No. 2024-0-38, being “An Ordinance Granting a Special Use Permit for a Planned Unit Development and Approving a General Development Plan for the T5@CHICAGO IV Phase 2 Property” (the “**Original SUP Ordinance**”), which property is generally located west of Illinois Route 83 on Peterson Road (the “**T5 Property**”); and

WHEREAS, as part of the Original SUP Ordinance, the Village entered into a certain “Agreement of Conditions & Specifications for the Special Use Permit Granted for the Planned Unit Development T5@CHICAGO IV Phase 2,” dated 19 November 2024 (the “**Original SUP Agreement**”) with T5@CHICAGO IV LP (the “**Owner**”) relating to the T5 Property; and

WHEREAS, Owner is the contract purchaser of additional real property consisting of approximately 33 acres located immediately east of the T5 Property and legally described in **Exhibit A** to this Ordinance (“**Subject Property**”); and

WHEREAS, Owner has made application for a special use permit for the Subject Property (the “**Application**”) to amend and enlarge the planned unit development approved as part of the Original SUP Ordinance (the “**Original PUD**”) and for changes to the General Development Plan in accordance with the notice, hearing, and approval procedures under the Village Zoning Code; and

WHEREAS, the Application seeks to include the Subject Property as part of an enlarged Original PUD pursuant to a modified general development plan to be known as the “**Revised General Development Plan**.” The Revised General Development Plan is attached hereto as **Exhibit B**; and

WHEREAS, pursuant to notice duly published on December 27, 2024 in the *Daily Herald*, the Village’s Plan Commission/Zoning Board of Appeals (the “**PCZBA**”) did conduct a public hearing on the Application and the granting of a special use permit to amend and enlarge the Original PUD that would

incorporate the Subject Property into the Original PUD and replacing the General Development Plan from the Original SUP Ordinance with the Revised General Development Plan and by approving the associated development plan for the Subject Property; and

WHEREAS, upon the conclusion of such public hearing, the PCZBA found that:

- (i) the Application and the Revised General Development Plan satisfy all the requirements of the Zoning Code for a special use permit for a planned unit development consistent with, and as set forth in, the Original SUP Ordinance;
- (ii) the Revised General Development Plan is an acceptable and appropriate general development plan for the Subject Property in conjunction with the T5 Property;
- (iii) the Revised General Development Plan is consistent with the Village's Comprehensive Plan; and
- (iv) the Revised General Development Plan is also consistent with the other agreements and regulations related to the T5 Property,

and therefore recommended that a special use permit for an enlargement of the Original PUD be granted for the Subject Property, which enlarged planned unit development would modify the General Development Plan as the Revised General Development Plan; and

WHEREAS, the Village Board has considered and adopted the findings and recommendations of the PCZBA regarding the granting of a special use permit for an enlarged Original PUD to include the Subject Property, and the amendment of the General Development Plan approved as part of the Original SUP Ordinance to add the Subject Property and associated development plan, as more fully set forth in the Revised General Development Plan; and

WHEREAS, the Village Board has also considered the First Amendment of the Original SUP Agreement (the "**First Amendment**"), which is attached hereto as **Exhibit C**. The First Amendment also provides for the replacement of the General Development Plan with the Revised General Development Plan; and

WHEREAS, the Village Board has determined that it is in the best interests of the Village and its residents to (i) approve a special use permit for a planned unit development enlarging the Original PUD, (ii) amend the Original SUP Agreement to incorporate the Subject Property and (iii) replace the General Development Plan with the Revised General Development Plan.

NOW, THEREFORE, BE IT ORDAINED BY THE PRESIDENT AND BOARD OF TRUSTEES OF THE VILLAGE OF GRAYSLAKE, LAKE COUNTY, ILLINOIS, as follows:

Section 1. Recitals. The foregoing recitals are incorporated into and made a part of this Ordinance by this reference.

Section 2. Granting Special Use Permit for Enlarged Planned Unit Development; Amendment to Original SUP Ordinance. The Village Board hereby (a) grants a special use permit for a planned unit development for the Subject Property that enlarges the Original PUD, (b) amends the Original SUP Ordinance by replacing the General Development Plan approved as part of Exhibit B to the Original SUP Ordinance with the Revised General Development Plan herein approved. Wherever the Original SUP Ordinance references the General Development Plan, such reference shall hereafter refer to the Revised General Development Plan, and any reference to the General Development Plan in the Original SUP Ordinance shall be a reference to the Revised General Development Plan as an element thereof.

Section 3. Approval and Authorization of First Amendment to SUP Agreement. In connection with and as a condition of the approval of the enlargement of the Original PUD and the replacement of the General Development Plan with the Revised General Development Plan, the Village Board hereby approves the First Amendment in substantially the form attached hereto as **Exhibit C**. The Mayor, Village Manager, Village Clerk, and Deputy Village Clerk are hereby authorized and directed to execute or attest the First Amendment on behalf of the Village following receipt of a signed First Amendment by the Owner and any other parties to such First Amendment.

Section 3. Effective Date. This Ordinance shall be in full force and effect after its passage, approval, and publication in pamphlet form in the manner provided by law; provided, however, that this Ordinance shall have no force or effect unless and until the Village has received the signed First Amendment from Owner and copies of a deed or deeds or other evidence that Owner is the legal and/or beneficial owner of the Subject Property (the "***Condition Precedent Documents***"); and provided further

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EXHIBIT A

Legal Description of the Property

THE NORTH WEST QUARTER OF THE NORTH EAST QUARTER OF SECTION 11, TOWNSHIP 44 NORTH, RANGE 10 EAST OF THE THIRD PRINCIPAL MERIDIAN, (EXCEPTING THAT PART DEDICATED FOR HIGHWAY PURPOSES TO STATE OF ILLINOIS, BY INSTRUMENT DATED APRIL 5, 1927 AND RECORDED AUGUST 15, 1927, AS DOCUMENT 303862 AND EXCEPTING THE NORTH 185 FEET THEREOF (MEASURED PERPENDICULARLY) CONVEYED TO COMMONWEALTH EDISON COMPANY BY DEED RECORDED MAY 4, 1961 AS DOCUMENT 1107306), IN LAKE COUNTY, ILLINOIS.

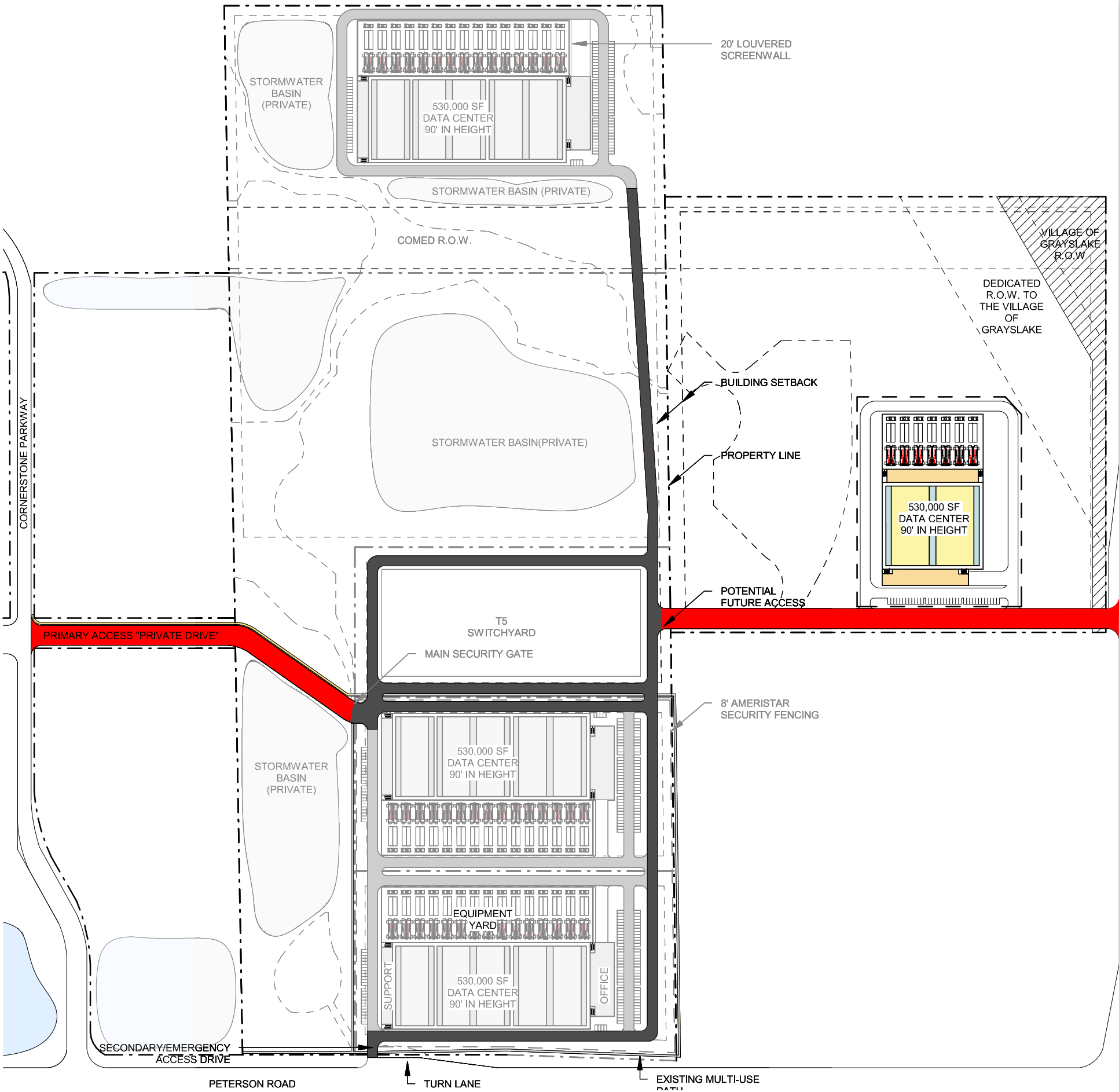
EXCEPT THE FOLLOWING:

THAT PART OF THE NORTHEAST QUARTER OF SECTION 11, TOWNSHIP 44 NORTH, RANGE 10 EAST OF THE THIRD PRINCIPAL MERIDIAN IN LAKE COUNTY, ILLINOIS, BEING DESCRIBED AS FOLLOWS:

COMMENCING AT THE SOUTHEAST CORNER OF THE NORTHWEST QUARTER OF SAID NORTHEAST QUARTER; THENCE WESTERLY ALONG THE SOUTH LINE OF SAID NORTHWEST QUARTER OF THE NORTHEAST QUARTER, HAVING AN ILLINOIS COORDINATE SYSTEM (EAST ZONE) GRID BEARING OF SOUTH 89 DEGREES 50 MINUTES 59 SECONDS WEST, A DISTANCE OF 35.73 FEET TO A POINT ON THE WESTERLY RIGHT-OF-WAY LINE OF ILLINOIS ROUTE 83 (A.K.A. IVANHOE ROAD) AS DEDICATED PER DOCUMENT NO. 303862, RECORDED AUGUST 15, 1927, SAID POINT BEING THE POINT OF BEGINNING; THENCE CONTINUING SOUTH 89 DEGREES 50 MINUTES 59 SECONDS WEST, 17.00 FEET ALONG SAID SOUTH LINE TO A POINT ON A LINE 50.00 FEET WESTERLY OF AND PARALLEL WITH THE CENTERLINE OF SAID ILLINOIS ROUTE 83, AS PER SAID DOCUMENT NO. 303862; THENCE NORTH 00 DEGREES 43 MINUTES 34 SECONDS WEST, 621.83 FEET ALONG SAID PARALLEL LINE; THENCE NORTH 89 DEGREES 16 MINUTES 26 SECONDS EAST, 17.00 FEET TO A POINT ON SAID WESTERLY RIGHT-OF-WAY LINE; THENCE SOUTH 00 DEGREES 43 MINUTES 34 SECONDS EAST, 622.00 FEET ALONG SAID WESTERLY RIGHT-OF-WAY LINE TO THE POINT OF BEGINNING.

EXHIBIT B

Revised General Development Plan



GENERAL DEVELOPMENT PLAN NOTES:

- CORNERSTONE PATTERN BOOK STANDARDS TO APPLY TO THE DEVELOPMENT OF THE SITE, INCLUDING LANDSCAPING FOR INDIVIDUAL SITES AND COMMON AREAS.
- SCREENING WALLS AROUND THE EQUIPMENT YARD TO BE ARCHITECTURALLY COMPATIBLE WITH THE BUILDING AND OF SUFFICIENT HEIGHT TO ADEQUATELY SCREEN EQUIPMENT (NOT TO EXCEED 20') FROM PUBLIC ROADWAYS AND VIEWPOINTS.
- MX ZONING STANDARDS TO APPLY UNLESS VARIED IN THE PUD AGREEMENT.
- THE BUILDING CONFIGURATION, SIZE, AND NUMBER MAY VARY BUT THE TOTAL SQUARE FOOTAGE SHALL NOT EXCEED 530,000 SF.
- 8' TALL SECURITY FENCING MAY BE INSTALLED AROUND EACH SITE OR ENTIRE SITE.
- PRIVATE DRIVEWAY TO BE DESIGNED FOR ALL EMERGENCY VEHICLES TO BE ABLE TO ACCESS THE PROPERTY AND MANEUVER WITHIN THE PROPERTY
- THE LAYOUT OF THE DETENTION PONDS MAY VARY BASED ON FINAL SITE GRADING AND APPLICABLE ENGINEERING.
- THE SCREENING WALLS AROUND THE SUBSTATION AND SWITCHYARDS SHALL BE AT A HEIGHT TO SUBSTANTIALLY SCREEN THE SUBSTATION AND SWITCHYARDS AND LANDSCAPE SCREENING THAT MEETS THE CORNERSTONE PATTERN BOOK STANDARDS IS TO BE INSTALLED AROUND THESE SCREENING WALLS.
- CROSS ACCESS EASEMENT TO BE INCLUDED ACROSS ALL ROADWAYS/DRIVEWAYS.
- 10-FT. WATER AND 15-FT. SANITARY EASEMENTS, RUNNING PARALLEL TO THE ROADWAYS/DRIVEWAYS ACCESS ALONG PETERSON ROAD TO BE PROVIDED.
- ALL EASEMENTS FOR WATER, SANITARY, AND ROADWAY/DRIVEWAY SHALL BE LOCATED OUTSIDE THE SECURITY FENCING FOR THE DEVELOPMENT.
- THE CONNECTION TO IL ROUTE 83 TO BE MADE IF APPROVED BY IDOT.
- DETENTION FOR THIS SITE MAY BE LOCATED IN THE R.O.W. DEDICATED TO THE VILLAGE, AS APPROVED BY THE VILLAGE.

**EXHIBIT B
REVISED GENERAL DEVELOPMENT PLAN**

- ROADWAY/DRIVEWAY (PRIVATE)
- BUILDING ACCESS DRIVE (PRIVATE)
- WALKING PATH



REVISED GENERAL DEVELOPMENT PLAN - T5@CHICAGO IV PHASE 2

T5@CHICAGO - GRAYSLAKE

Scale: 1 : 4000
Date: 01.08.2025

EXHIBIT C

First Amendment to Original SUP Agreement

4924-9134-0058, v. 3

EXHIBIT C

FIRST AMENDMENT TO THE AGREEMENT OF CONDITIONS & SPECIFICATIONS FOR THE SPECIAL USE PERMIT FOR THE PLANNED UNIT DEVELOPMENT T5@CHICAGO IV PHASE 2

This **FIRST AMENDMENT TO THE AGREEMENT OF CONDITIONS & SPECIFICATIONS FOR THE SPECIAL USE PERMIT FOR THE PLANNED UNIT DEVELOPMENT T5@CHICAGO IV PHASE 2** (the “*First Amendment*”) entered into as of this 18th day of February, 2025 (the “*Effective Date*”) by and between **T5@CHICAGO IV LP** (“*Owner*”) and the **VILLAGE OF GRAYSLAKE**, an Illinois municipal corporation (“*Village*”). The Owner and Village shall hereinafter be collectively referred to as the “*Parties*”.

IN CONSIDERATION OF the promises each of the other made, as hereinafter set forth and other good and valuable consideration, IT IS HEREBY UNDERSTOOD AND AGREED by and between the Parties as follows:

SECTION 1. RECITALS

A. The Parties have previously entered into a certain “Agreement of Conditions & Specifications for the Special Use Permit Granted for the Planned Unit Development T5@CHICAGO IV Phase 2” dated 19 November 2024 (the “*Original SUP Agreement*”) relating to the so-called “*T5 Property*” generally located west of Illinois Route 83 on Peterson Road and legally described in Exhibit A of the Original SUP Agreement.

B. The Original SUP Agreement controls the land uses and development of the T5 Property pursuant to Village Ordinance No. 2024-0-38 (the “*Original SUP Ordinance*”), which approved a General Development Plan for the T5 Property.

C. Owner now desires to modify the Original SUP Agreement by incorporating an additional 33 acres legally described in **Exhibit A** hereto (the “*Subject Property*”) and located immediately east of the T5 Property, into a modified General Development Plan, which revised plan is attached hereto as **Exhibit B** (the “*Revised General Development Plan*”).

D. The Village is willing to accept the Subject Property for all purposes relating to the Original SUP Agreement, subject to the Revised General Development Plan and the terms and provisions of this First Amendment.

E. The Parties intend that the future development and use of the Subject Property shall be in accordance with the Original SUP Agreement as herein amended.

SECTION 2. GENERAL DEVELOPMENT PLAN AMENDMENT

The Parties agree that the General Development Plan attached to the Original SUP Agreement shall be amended in its entirety and replaced by the Revised General Development Plan, which incorporates the Subject Property. Any reference to the “General Development Plan”

in the Original SUP Agreement (or the General Development Plan in the Original SUP Ordinance) shall hereafter be deemed to refer to the Revised General Development Plan. Additionally, any reference to the “General Development Plan” in the Original SUP Agreement or the Original SUP Ordinance shall be deemed to be the General Development Plan with the Revised General Development Plan as an element thereof.

SECTION 3. DEVELOPMENT STANDARDS AMENDMENT

The development standards included in Section 6.E., *Development Standards*, of the Original SUP Agreement, shall remain in place, except that Section 6.E.i., *PUD Layout Flexibility*, of the Original SUP Agreement shall be replaced with the following in order to include the additional Subject Property in the total combined square footage allowed to be developed on the T5 Property and Subject Property as reflected in the Revised General Development Plan:

- i. **PUD Layout Flexibility:** The size, configuration, and number of buildings shown in the ~~General Development Plan~~ **Revised General Development Plan (Exhibit B)** may be adjusted to accommodate facility customer needs, provided that (a) the total gross floor area of buildings and structures on the ~~Property~~ **T5 Property and Subject Property** shall not exceed ~~1,590,000~~ **2,120,000** square feet, and (b) MX District and Cornerstone Zoning Standards (including without limitation the Vision and Pattern Book) shall continue to apply.

SECTION 4. APPLICABILITY.

Except as otherwise provided in Section 5 of this First Amendment, the development of the Subject Property shall be governed by and subject to the Original SUP Agreement as modified by this First Amendment

SECTION 5. INAPPLICABILITY OF SETTLEMENT AGREEMENT.

Notwithstanding any provisions in the Original SUP Agreement, the Subject Property is not and shall not be subject to any provisions of the Settlement Agreement and Release dated October 16, 1986 (the “***Heartland Settlement Agreement***”), and Section 1.C., Section 6.A., Section 6.B.viii., Section 9, and Section 10 of the Original SUP Agreement (as well as any other references in the Original SUP Agreement to the Heartland Settlement Agreement) shall not apply to the Subject Property.

SECTION 6. CONTINUED EFFECT.

Except as otherwise expressly provided in this First Amendment, the terms and provisions of the Original SUP Agreement shall remain in full force and effect. Nothing in this First Amendment shall affect any Final PUD Plans that have previously been approved for any part of the T5 Property.

[Signature pages to follow]

IN WITNESS WHEREOF, the parties to this First Amendment by their signatures acknowledge that they have read and understand this First Amendment and intend to be bound by its terms.

VILLAGE OF GRAYSLAKE

BY:

 2/18/2025

Mayor Date

ATTESTED:

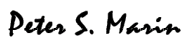
 2-18-2025

Deputy Village Clerk Date



T5@CHICAGO IV LP

BY:

DocuSigned by:
 May 12, 2025
7256A0DBFA42406

Authorized Officer Date

ATTESTED:

DocuSigned by:
 May 12, 2025
479C5646473647A

Authorized Officer Date

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 2/18/2025

Mayor

Date

ATTESTED:

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Deputy Village Clerk Date



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BY:

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Date

ATTESTED:

Authorized Officer

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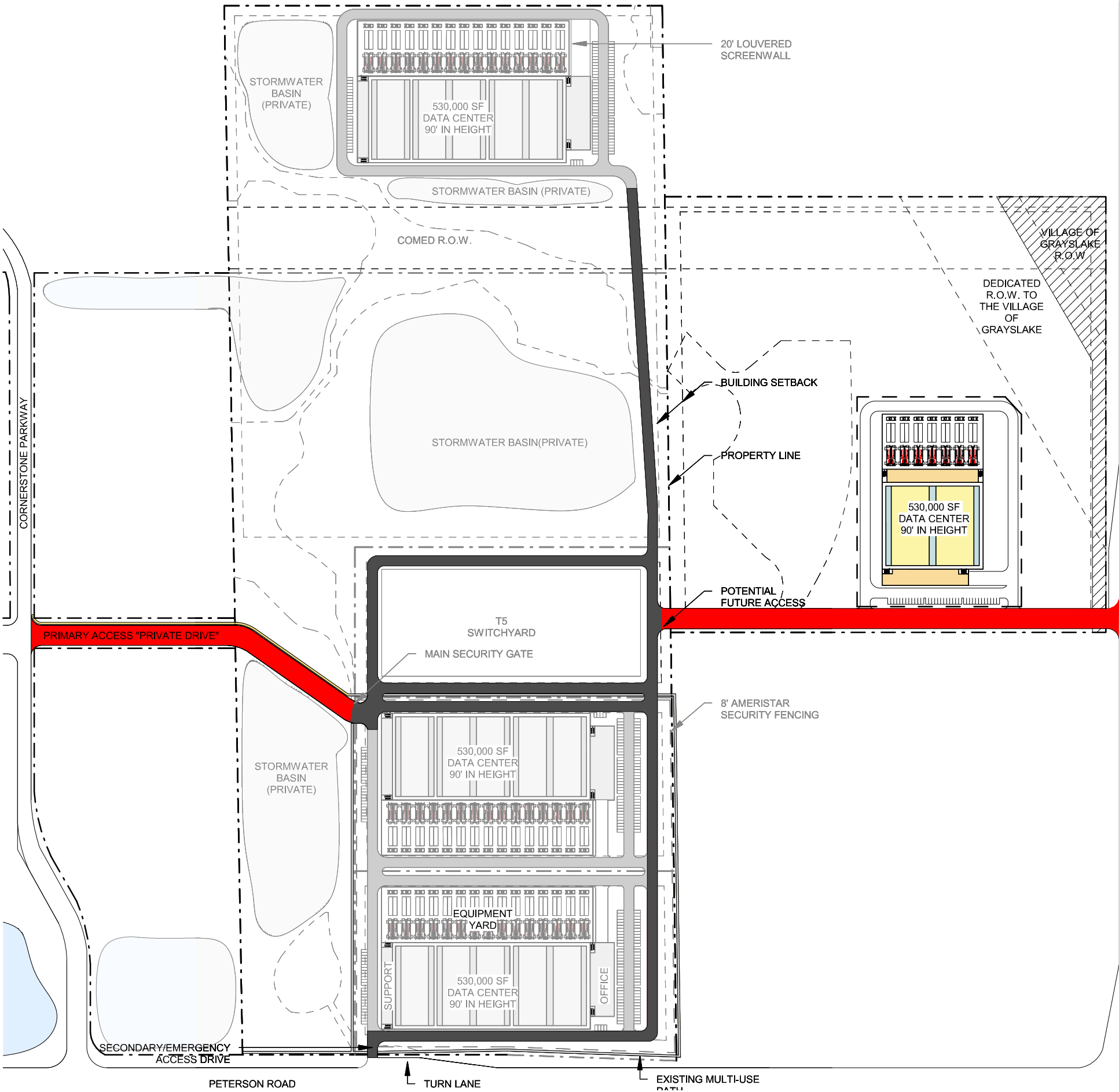
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Revised General Development Plan

4918-9064-1434, v. 3



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REVISED GENERAL DEVELOPMENT PLAN**

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- BUILDING ACCESS DRIVE (PRIVATE)
- WALKING PATH



REVISED GENERAL DEVELOPMENT PLAN - T5@CHICAGO IV PHASE 2

T5@CHICAGO - GRAYSLAKE

Scale: 1 : 4000
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